**IXM (Shanghai) Corporate Management Company Limited**
Room A-806, CBD Building, No.188, Yesheng Rd,
LIN-GANG Special Area, China (Shanghai)
Pilot Free Trade Zone, Shanghai, China

A CMOC Group Company

For and
ASK

This **CONTRACT CONFIRMATION** is entered into between:

Parties:

1) **ASK RESOURCES LTD**, a company incorporated in Hong Kong with its registered address at 35F. CENTRAL PLAZA, 18 HARBOUR ROAD, WANCHAI, HONGKONG (the "Seller") and

2) **IXM (Shanghai) Corporate Management Company Limited**, a company incorporated in China with its registered office at Room A-806, CBD Building, No.188, Yesheng Rd, LIN-GANG Special Area, China (Shanghai) Pilot Free Trade Zone Shanghai, China (the "Buyer").

This contract confirmation incorporates *IXM General Terms and Conditions for Refined Metals* (the "**GTCs**") https://www.ixmetals.com/24.01_IXM_2024%20GTCs_(final).pdf (this contract confirmation and the GTCs together constituting and being defined as the "**Contract**"). Both parties declare themselves to be fully acquainted with the terms of the Contract. The Seller agrees to sell to the Buyer, and the Buyer agrees to buy from the Seller, Product on the terms and conditions set out in this Contract:

| | | |
|---|---|---|
| 1. | **Contract Number** | P101.41482 |
| 2. | **Contract Effective Date** | 3rd July 2024 |
| 3. | **Contract Term** | The Contract shall be in effect from the Effective Date until the date each Party has fully performed its respective obligations, or until the Contract has otherwise been terminated in accordance with its terms. |
| 4. | **Product** | London Metal Exchange ("LME") Registered Grade A Copper Cathodes |
| 5. | **Brand** | MV |
| 6. | **Quantity** | 500 metric tons plus or minus 5% in Total, in Seller's option |
| 7. | **Packing** | In bundles packed with straps in containers suitable for standard sea transport. |
| 8. | **Delivery Terms** | CIF (Incoterms 2020) Shanghai, China |
| 9. | **Delivery Schedule** | 500 metric tonnes plus or minus 5% in the Seller's option, shall be delivered at loading, with the Seller to provide the Estimated Time of Arrival ("ETA") at discharge port, as provided by the carrier at the time of loading. Seller shall make reasonable commercial efforts to schedule the Delivery as such so that the ETA is around 16th July 2024, subject to vessel and container availability. |
| 10. | **Price** | The contractual Price shall be the London Metals Exchange ("LME") Official US Dollar Copper Grade A Cash Settlement Price as fixed over the Quotational Period as per clause 12. Quotational Period, plus the Contractual Premium as per clause 11. Premium. |
| 11. | **Premium** | The Premium shall be US Dollars -18.00 per metric ton. |
| 12. | **Quotational Period ("QP")** | The QP shall be August 2024.<br><br>Any pricing executed by the Buyer in accordance with this contract shall be adjusted to 21st August 2024. Such pricing shall be fulfilled by Seller according to Buyer's instructions. Seller shall place their pricing instructions in writing latest at 11 am London time on the day they want to price.<br><br>The Last Pricing Date shall be the second market day prior to the third Wednesday of the Quotational Period (prior to 11 a.m. London time). |

| | | |
|---|---|---|
| | | 5% early pricing deposit (the "Pricing Deposit"):<br>Upon Buyer's written request and Seller's agreement, Buyer may commence pricing of the Product prior to the provisional payment effected in accordance with clause 13) Payment. In such case Buyer and Seller shall mutually agree on an applicable provisional price. Buyer shall arrange for a Pricing Deposit of 5% of the Product value to be transferred to the bank account nominated by the Seller against Seller's presentation of Seller's respective Debit Note. The Pricing Deposit shall be transferred to Seller on a full title transfer basis. Any pricing obligation of the Seller is conditional upon receipt of the Pricing Deposit. |
| 13. | **Payment** | All payments under this Contract shall be made by telegraphic transfer without adjustments, discounts, deductions, set-off, counterclaim or withholdings of any kind.<br><br><u>Provisional Payment</u><br>105% of the provisional Product value (or 100% final value if final price is known) shall be paid by Buyer to Seller's nominated bank account after Buyer's receipt of the original documents listed in clause 14) Documentation which shall be presented to Buyer within one week after vessel arrival at discharge port (but no later than one week after vessel arrival at discharge port).<br><br><u>Final Settlement</u><br>Final settlement shall be made in US Dollars by the owing party within 3 working days from the date when final price has been determined. |
| 14. | **Documentation** | • Seller's provisional or final invoice, as the case may be.<br>The provisional price to be applied shall be the average of the LME Copper Grade A Cash Settlement price for 5 LME market days prior to the invoice date plus the contractual premium.<br>• Final Invoice shall be calculated basis final price established in accordance with this contract.<br>• Full set of shipped on board ocean Bills of Lading blank endorsed, made out to order, marked freight prepaid.<br>• Full set of insurance certificate, blank endorsed, showing claims payable in Destination country, in the currency of the draft, covering war risks, S.R.C.C and All risks in accordance with institute cargo clauses (A).<br>• Seller's Weight certificate showing gross and net weight.<br>• Seller's Certificate of Quality/Analysis.<br>• Seller's Packing list. |
| 15. | **Title and Risk** | Transfer of risk from Seller to Buyer shall be on delivery of the Product in accordance with the relevant Incoterm.<br><br>Title to the Product shall transfer to the Buyer upon Seller's receipt of full payment. Or in the event the Contract calls for provisional payment then title shall transfer to the Buyer upon Seller's receipt of the first provisional payment. |
| 16. | **Insurance** | The Seller shall provide insurance of the Material for All Risks in accordance with Institute Cargo Clauses (A) CL.382, Institute War Clauses (Cargo) Cl.385 1.1.09, and Institute Strikes Clauses (Cargo) Cl.386 1.1.09, which shall be placed by Seller direct with a first class insurance company (with a minimum credit rating of A- S&P for senior unsecured rating, or equivalent) for the amount of 110% (one hundred and ten percent) of the value of the product, subject to adjustments to the final value in accordance with this Contract. |

**IXM (Shanghai) Corporate Management Company Limited**
Room A-806, CBD Building, No.188, Yesheng Rd,
LIN-GANG Special Area, China (Shanghai)
Pilot Free Trade Zone, Shanghai, China

IXM
A CMOC Group Company

| | | |
|---|---|---|
| 17. | **Margin clause** | The Buyer shall be the "Calculation Agent" for the purposes of calculating any Marked to Market Exposure. "Marked to Market Exposure" means, with respect to any Product, any gain or loss (expressed as a positive or negative USD currency value) between the fixed forward price of the Product and the current Market Price as at the valuation date, plus an exposure tolerance of [2.5] percent. Without limiting the Valuation Agent's capacity to use any alternate methodology to calculate Marked to Market Exposure, for the purpose of the foregoing "Market Price" means the official LME [Copper] cash settlement price as at the valuation date chosen by the Calculation Agent. In the event of any Marked to Market Exposure, as calculated by the Calculation Agent, the Buyer may, at its option, require the Seller to provide and maintain margin under the Contract in the form of Acceptable Collateral. "Acceptable Collateral" hereunder means; (i) US Dollar funds via telegraphic transfer to an account nominated by Buyer, or (ii) another form of acceptable collateral as agreed by Buyer. The Seller shall deliver Acceptable Collateral to the Buyer within one (1) Geneva business day (one 24-hour period) from receipt of Buyer's margin demand, as may be amended to reflect any changing Marked to Market Exposure. Seller's failure to strictly and timely comply with the foregoing requirements shall constitute a "Margin Default" which shall be an Event of Default under the Contract. |
| 18. | **Governing Law and Jurisdiction** | This Contract is governed by the laws of England and Wales.<br><br>Any and all disputes arising out of or in connection with the Contract, including without limitation any question regarding its existence, validity or termination, shall be referred to arbitration in London in accordance with the Arbitration Regulations of the London Metal Exchange. |
| 19. | **Additional Terms** | Bill of lading weight to govern. |
| 20. | **Notices** | Buyer's Notice Address:<br><br>**IXM (Shanghai) Corporate Management Company Limited**<br><br>Room A-806, CBD Building, No.188, Yesheng Rd, LIN-GANG Special Area, China (Shanghai) Pilot Free Trade Zone, Shanghai, China<br><br>Seller's Notice Address:<br><br>**ASK RESOURCES LTD**<br><br>35F. CENTRAL PLAZA, 18 HARBOUR ROAD, WANCHAI, HONGKONG |

Limited
Authorized Signature(s)

Authorised signatories:

For and on behalf of:

(Buyer)
**IXM (Shanghai) Corporate Management Company Limited**

---

Name:________________

Title: ________________

Date:________________

(Seller)
**ASK RESOURCES LTD**

For and on behalf of
ASK Resources Limited

Authorized Signature(s)

Name:________________

Title: ________________

Date:________________

Buyer's contract No.: P101.41482